



An Roinn Dlí agus Cirt,
Gnóthaí Baile agus Imirce
Department of Justice,
Home Affairs and Migration

Child Protection and Welfare Safeguarding Policy and Practice Document

Department of Justice, Home Affairs and
Migration

Covering the offices of
International Protection and
Integration Division



Name of Services Being Provided:

International Protection Accommodation Service (IPAS)

Irish Refugee Protection Programme (IRPP)

International Protection Procurement Service (IPPS)

International Protection Support Service (IPSS)

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References

The Child Care Act, 1991¹ provides the legislative basis for dealing with children in need of care and protection. The promotion of the welfare of children is the paramount principle underpinning the Act.

This International Protection Accommodation Services (IPAS) policy is informed by that Act, the National Vetting Bureau Acts 2012-2016, the Children First Act 2015 and by the following policies:

- ▶ Children First - National Guidance for the Protection and Welfare of Children 2017²
- ▶ Child Protection and Welfare Practice Handbook 2

This policy is also informed by the UN Convention on the Rights of the Child.³ The underlying principles of the Convention may be summarised as follows:

- (i) Non-discrimination (Article 2): All rights apply to all children without exception. The State is obliged to protect children from any form of discrimination and to take positive action to promote their rights.
- (ii) Best interests of the Child (Article 3): All actions concerning the child shall take account of his or her best interests. The State shall provide the child with adequate care when parents, or others charged with that responsibility fail to do so.
- (iii) Survival and Development (Article 6): Every child has the inherent right to life, and the State has an obligation to ensure the child's survival and development.
- (iv) The Child's Opinion (Article 12): The child has the right to express his or her opinion freely and to have that opinion taken into account in any matter or procedure affecting the child.

This Policy should also be read in conjunction with the IPAS Code of Practice for all Staff working in Accommodation Centres. Copies are available at www.gov.ie/ipas or on request from the IPAS offices, contact details supplied at the end of this document.

¹ Child Care Act 1991 - Law Reform Commission www.lawreform.ie/_fileupload/Restatement/EN_ACT_1991_0017.PDF

² Children First National Guidance <https://www.dcy.gov.ie/documents/publications/20171002ChildrenFirst2017.pdf>

³ www.childrensrights.ie/childrens-rights-ireland/childrens-rights-ireland

Chapter 1

INTRODUCTION



This policy and practice document deals with safeguarding children in accommodation centres for persons seeking International Protection under contract to the Department of Justice, Home Affairs and Migration. It also provides guidance to all staff in accommodation centres, International Protection Accommodation Service (IPAS), International Protection Procurement Service (IPPS), Irish Refugee Protection Programme (IRPP), International Protection Support Services (IPSS) and State-owned International Protection Accommodation (SIPA).

This policy also applies to all Accommodation Centres under contract to the Department. Each Accommodation Centre must complete their own Child Safeguarding Policy and Child Safeguarding Statement. These must be displayed in a communal area along with the Designated Liaison Person (DLP) Contact Details.

This policy should be read in conjunction with the TUSLA Child Safeguarding Policy and Statement guidance available at [Child Safeguarding Statement Compliance Unit \(CSSCU\) TUSLA - Child and Family Agency](#). Each accommodation centre and EROC must display their own Safeguarding Statement.

This policy compliments other existing IPAS protection policies - all of which are available on the IPAS website www.gov.ie/ipas - including:

- ▶ **Garda Vetting Procedures.** The Garda vetting procedure is part of recruitment procedure, which is a specified procedure under the Children First Act. All staff in centres under contract to IPAS are required to have an up to date, valid Vetting Disclosure prior to taking up employment in an accommodation centre.
- ▶ **Complaints Policy.** The IPAS has a complaints procedure and all residents can make a complaint. The complaints procedure is contained within the House Rules which is provided to all residents by the centre manager. Its aim is to have problems dealt with quickly and efficiently. Residents should not be afraid to complain.

Making a complaint will not affect your International Protection Application in the State and any other interactions with official agencies. A complaints process for children has been developed for children within Department of Justice Home Affairs and Migration gov.ie - [IPAS Children \(www.gov.ie\)](http://gov.ie)

- ▶ **IPAS Policy and Practice Document on safeguarding IPAS residents against Domestic, Sexual and Gender-based Violence & Harassment**
- ▶ **IPAS Code of Practice** for Persons Working in Accommodation Centres and IPAS Staff
- ▶ **National Policy** agreed between TUSLA Child and Family Agency and IPAS in relation to reuniting children with adults living in IPAS accommodation centres.
- ▶ **Policy on Accommodation of Aged Out Minors** in IPAS Accommodation Centres based on advice and recommendations from TUSLA. In Ireland under the Child Care Act 1991, the Children Act 2001 and the United Nations Convention on the Rights of the Child a child is defined as anyone under the age of 18. Each International Protection Applicant (IPA) who turns 18 is deemed an Aged Out Minor (AOM). We would accommodate them in our centres where possible and appropriate.
- ▶ **Communication of this policy**
This policy is available on the IPAS website - www.gov.ie/ipas
- ▶ **House Rules**
www.gov.ie/pdf/?file=https://assets.gov.ie/286346/922b94a0-caf2-4574-9b0c-3f864b0fbfa9.pdf#page=null

Chapter 2

IPAS STATEMENT OF POLICY



The Department of Justice Home Affairs and Migration through the IPAS and the Irish Refugee Protection Programme (IRPP) and all accommodation centres under contract, are committed to safeguarding and protecting children. The safety and well-being of all residents, but particularly children, is our paramount concern. All children who reside in IPAS must live with a parent/parents/guardian.

This Policy recognises that all children have the right to be protected from harm, be treated with respect, be listened to, and have their views taken into consideration.

This Policy commits IPAS, IRPP and all accommodation centres to ensuring that all Child Protection or Welfare issues which arise are dealt with without delay. It comprises both a policy and practice document. In relation to the latter, the specific steps to be taken when a child protection or welfare concern is reported are outlined in Chapter 9.

This Policy applies to all IPAS and IRPP staff who must follow this procedure to safeguard children and the residents of centres. All staff including service delivery staff must sign a declaration confirming they have read and will abide by this policy – see Appendix 2.

This Policy recognises that IPAS, IRPP and the centres under contract to the Department have a duty of care to all residents. It acknowledges that all children live in a family context with their parents or guardians, who have primary responsibility for their care, welfare, and supervision.

⁴ <https://www.irishstatutebook.ie/eli/2015/act/36/enacted/en/html> Children First Act 2015 “harm” means, in relation to a child – (a) assault, ill-treatment or neglect of the child in a manner that seriously affects or is likely to seriously affect the child’s health, development or welfare, or (b) sexual abuse of the child, whether caused by a single act, omission or circumstance or a series or combination of acts, omissions or circumstances, or otherwise;



Scope of Policy

This policy will be reviewed every two years by the Resident Welfare Team IPAS, in conjunction with review of the Child Safeguarding Statement and in union with the Principal Officer, IPAS.

Children living in accommodation centres are in the care of their parents/guardian. A child is defined as anyone under the age of 18 years (as per Child Care Act 1991; Children First National Guidance, 2017; Children Act, 2001; United Nations Convention on the Rights of the Child).

The function of this Child Protection and Welfare Policy is to guide and direct all staff, volunteers and the “Designated Liaison Person”(DLP) in each IPAS centre. The DLP is responsible for dealing with any concerns about the protection of welfare of children which may arise specifically across all IPAS services; such as children being absent from centres and suspected trafficking. There are different roles and procedures for the DLP in IPAS and the DLP in a centre.

As of 5th December 2017, the Children First Act 2015 has commenced and is fully implemented. Certain categories of people are named as Mandated Persons under the Act. Managers of accommodation centres for people seeking International Protection are Mandated Persons. Other persons in IPAS or in accommodation centres may be Mandated Persons due to their professional registrations. Such persons will be notified to staff and users of the services provided. See Appendix 9. Mandated persons must report incidences of actual or suspected harm⁴ of children to Tusla, the Child and Family Agency.

Under Schedule 1 of the Act, accommodation services for people seeking International Protection are defined as ‘Providers of relevant services’. Providers of relevant services must undertake to keep children safe from harm while in receipt of service. All providers of relevant services

must have a Child Safeguarding Statement. Providers of relevant services must undertake a risk assessment in relation to the risk of harm to a child while availing of the service and to audit their child protection risks. The risk audit should inform the development of the Child Safeguarding Statement for the service.

It should be noted that this policy outlines the organisation’s responsibility towards those who may be present in the centre at any time but who are not residents and resident children who are missing from the centre.

- ▶ Visitors to the centres. This is dealt with in Chapter 7 and in IPAS House Rules and Procedures www.gov.ie/pdf/?file=https://assets.gov.ie/286346/922b94a0-caf2-4574-9b0c-3f864b0fbfa9.pdf#page=null and Appendix 2.
- ▶ Children who are missing from the centre are dealt with in Chapter 4.

There are no unaccompanied minors under 18 years of age in our centres. Accommodation of unaccompanied minors under 18 years of age is the sole responsibility of Tusla Child and Family Agency.



Chapter

3

CONFIDENTIALITY



This policy recognises that, in the event of an allegation, suspicion or disclosure of harm to a child being made to a member of staff or to IPAS/IRPP directly, no commitment to secrecy can be given.

Any information provided by centre staff or IPAS to the Social Work Team of the Tusla Child and Family Agency or to An Garda Síochána will remain confidential within appropriate limits. Those receiving information will only disclose it in line with their obligations as outlined in Children First National Guidance 2017 and their obligations under the Children First Act 2015. Parents and children have a right to know when information is being shared unless doing so would put the child at further risk, would impair the investigation or the person who reports the complaint are put at risk.

Only those who need to know of a suspicion, allegation or disclosure of abuse or harm are informed, and the numbers that need to know will be kept to a minimum. All reports relating to child protection and welfare will be shared on a strictly need-to-know basis. This will usually mean that such reports will be made known to the Centre Manager, the DLP (where possible this should not be same person, depending on size of centre), the Child Safeguarding Lead Manager IPAS, Tusla and/or Gardaí. In all cases, the safety and wellbeing of the child is paramount, and there should be no delay in reporting suspected safeguarding concerns to Tusla or the Gardaí.

The storage and transmission of all reports relating to child safeguarding concerns is according to the General Data Protection Regulation (GDPR) principles. The Department adheres to the requirements of the Data Protection and Freedom of Information Acts. All records relating to child protection concerns or welfare arising in centres are stored with other IPAS records on the eDocs system and are accessible only to certain staff within IPAS.

Legal protections in reporting child abuse

Any Child Protection Report will be accepted as being made reasonably, in good faith and in the best interests of the child.

The Protection for Persons Reporting Child Abuse Act, 1998 provides for:

- (i) Immunity from civil liability for any person who reports child abuse “reasonably and in good faith” to designated officers of Tusla or any member of An Garda Síochána.
- (ii) Significant protections for employees who report child abuse. These protections cover all employees and all forms of discrimination up to, and including, dismissal.
- (iii) The creation of a new offence of false reporting of child abuse where a person makes a report of child abuse to the appropriate authorities “knowing that statement to be false”

The Protected Disclosures Act 2014 provides for:

- (i) If a qualified privilege applies to a statement, it means that the person suing for defamation must prove that the person who made the defamatory statement acted intentionally, recklessly, or with malice, hatred, spite, ill will or resentment, depending on your state's law.

Chapter 4

DEFINITIONS



A safeguarding issue in an accommodation centre can manifest itself in several ways:

Signs of possible issues:

- ▶ Child Abuse
- ▶ Children absent from centres
- ▶ Suspected trafficking

Below are clear explanations of these protection issues:

Child Abuse

Child abuse is defined in *Children First National Guidance for the Protection and Welfare of Children, 2017* as falling into four categories –

- ▶ neglect,
- ▶ emotional,
- ▶ physical,
- ▶ sexual.

An Garda Síochána will deal with the criminal aspects of any case under the relevant legislation. Further information on how to recognise the signs of abuse, and the definitions of each category are found in **Chapter 2 of the Children First National Guidance, 2017**.

Harm is defined in the Children First Act 2015, Section 2 as follows:

“Harm” means, in relation to a child—

- (a) Assault, ill-treatment or neglect of the child in a manner that seriously affects or is likely to seriously affect the child’s health, development, or welfare, or
- (b) Sexual abuse of the child, whether caused by a single act, omission or circumstance or a series or combination of acts, omissions or circumstances, or otherwise.
- (c) Exposure to inappropriate or abusive material through any medium, including online.

The threshold of harm is deemed to exist where the *child’s health, development or welfare have been or are being seriously affected or are likely to be seriously affected*⁵.

Mandated persons also have a responsibility to report under Reasonable Grounds for Concern – under the Children First Guidance. If the concern reaches or exceeds the threshold of harm, the report from the mandated person becomes a report under the Act.

All managers of accommodation centres for people seeking International Protection are Mandated Persons.

Underage consensual sexual activity

Under the Criminal Law (Sexual Offences) Act 2006 the legal age of consent is 17 years. While a sexual relationship where one or both parties is under 17 years of age is illegal, when making a mandated report to TUSLA, it might not be regarded as child sexual abuse.

There are certain exemptions from reporting underage consensual sexual activity under section 14(3) of the Children First Act 2015. If you are satisfied that **all** of the following criteria are met, you are not required to make a report to Tusla:

- ▶ The young person(s) concerned are between 15 and 17 years’ old.
- ▶ The age difference between them is not more than 24 months.
- ▶ There is no material difference in their maturity or capacity to consent.
- ▶ The relationship between the people engaged in the sexual activity does not involve intimidation or exploitation of either person.
- ▶ The young person(s) concerned state clearly that they do not want any information about the activity to be disclosed to Tusla.

⁵ Children First National Guidance for the Protection and Welfare of Children 2017, Chapter 3 Mandated Persons

Issues outside normal definition of abuse

Issues of concern in relation to children can also arise outside the context of 'abuse' as defined above. In the context of an accommodation centre, these issues may include children missing from centres and suspected trafficking of children.

Children Missing from Centres

Children living in IPAS accommodation centres and EROCs are in the care of their parents or guardians.

If there is a suspicion that a child is away from the parents/guardian and no reasonable explanation is offered, the procedures as outlined in Chapter 9 in making an immediate report to Tusla and Gardaí should be followed.

Suspected Trafficking

The United Nations defines trafficking⁶ as

'the recruitment, transportation, transfer, harbouring or receipt of persons, by means of threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability....The recruitment, transportation, transfer, harbouring or receipt of a child (meaning any person under eighteen years of age) for the purpose of exploitation shall be considered trafficking in persons even if this does not involve any of the means set forth in this article.'

More details on trafficking of children are contained in the Child Protection and Welfare Practice Handbook 2 Pg.121 https://www.TUSLA.ie/uploads/content/TUSLA_Child_Protection_Handbook2.pdf and The Services for Victims of Child Trafficking www.blueblindfold.gov.ie

Detailed below are some indicators of child trafficking in the context of residents in accommodation centres covered by this policy.

Concern would arise if the child:

- ▶ Has no friends of their own age
- ▶ Looks intimidated and behaves in a way that does not correspond with behaviour typical of child of their age
- ▶ Has no time for playing
- ▶ Eats apart from other members of the 'family'
- ▶ Travels unaccompanied by adults
- ▶ Travels in groups with persons who are not relatives
- ▶ The presence of child-sized clothing typically worn for doing manual or sex work.

This is not an exhaustive list. However, if a concern arises as to the possibility of a child or other resident being trafficked, or another resident being involved in trafficking, the procedures as set out in Chapter 9 should be followed. However, due to the urgency of this matter the Gardaí should be contacted first by phone.

These circumstances are treated as serious cases. If you have a suspicion that a child is a victim of trafficking you should contact An Garda Síochána. In an emergency please call 999 / 112. You can also contact Gardaí by contacting your local Garda station or by contacting 1800 666 111 daily from 9am to 9pm. This freephone number is monitored by trained Gardaí. You should also report your concerns to the local Tusla Duty Social Work Team.

An incident report and/or child protection notification should be submitted in line with other reporting requirements for child protection and welfare as outlined in the policy.

⁶ United Nations definition taken from the 2nd Protocol to the UN Convention against Transnational Organised Crime of 2000. The title of the Protocol is "Protocol to Prevent, Suppress and Punish Trafficking in Persons especially Women and children, supplementing the United Nations Convention against Transnational Organised Crime"

Chapter 5

RECOGNISING CHILD ABUSE AND REPORTING



The ability to recognise child abuse depends as much on a person's willingness to accept the possibility of its existence as it does on their knowledge and information. Child Abuse can often be difficult to identify and may present in many forms. Early detection is important and those working with children should share their concerns about child protection or welfare with the Designated Liaison Person (DLP). It is best practice that the Accommodation Centre Manager is not the DLP.

All Managers of Accommodation Centres/ EROCs **must read Chapter 3 "Mandated Persons" of the Children First National Guidance 2017** and fully understand and abide by the advice and procedures described therein. <https://www.irishstatutebook.ie/eli/2015/act/36/enacted/en/html>

Residents should be advised of the IPAS Child Protection and Welfare Policy. Reporting of child welfare concerns should be explained to all residents by Centre Managers.

In addition, residents will see a copy of the centre's Child Safeguarding Statement on display in the centre. Residents should be made aware of the Designated Liaison Person (DLP) contact details which should also be displayed in the centre. Residents can request a copy of the Child Protection and Welfare Safeguarding Policy.

Children living in Accommodation Centres may be particularly vulnerable for several reasons including:

- ▶ Language difficulties;
- ▶ Cultural differences;
- ▶ Dependence on service providers;
- ▶ Fear of not being believed;
- ▶ Frequent turnover of staff;
- ▶ Fear and uncertainty regarding the future;
- ▶ Their parents may also experience language difficulties or be fearful of authorities;



There are commonly three stages in the identification of child abuse. These are:

- ▶ Considering the possibility
- ▶ Looking out for signs of abuse
- ▶ Recording the information

How does a concern about a child come about?

Concerns about a child can come from several sources such as:

- ▶ A child may make a disclosure i.e. tell to a member of staff or another trusted person (See Chapter 9)
- ▶ A resident may inform a member of staff of concerns or that a child has made a disclosure to them. This could involve a resident telling a staff member of an alleged concern involving another resident, non-resident, service provider, staff member or IPAS /IRPP/IPPS staff member.
- ▶ Staff may notice signs of abuse or be concerned about the child's welfare. For example, staff may witness a Child Protection or Welfare concern involving a family member, a resident, non-resident, service provider, staff member or IPAS / IRPP/ IPPS staff member.
- ▶ Staff may be concerned about the behaviour of another member of staff.
- ▶ Other person / organisation (e.g. other resident / NGO) advises staff of an alleged concern about a resident(s).

Reasonable grounds for a child protection or welfare concern include:

- ▶ Evidence, for example an injury or behaviour, that is consistent with abuse and is unlikely to have been caused in any other way
- ▶ Any concern about possible sexual abuse
- ▶ Consistent signs that a child is suffering from emotional or physical neglect
- ▶ A child saying or indicating by other means that he or she has been abused
- ▶ Admission or indication by an adult or a child of an alleged abuse they committed
- ▶ An account from a person who saw the child being abused

It is important to stress that no one indicator should be seen as conclusive of abuse; it may indeed indicate conditions other than child abuse. However, it is not the responsibility of staff or of the DLP to investigate or prove abuse. It is the responsibility of all staff to report to their DLP. The DLP will discuss with the person who has raised the concern and document and report the reasonable grounds for concern to the Tusla Child and Family Agency and inform IPAS Resident Welfare Team of the concern.

Chapter 6

REPORTING STRUCTURES & TRAINING



All Staff

The staff of IPAS, IRPP, IPPS, IPSS and the staff in each accommodation centre and EROC must complete the Tusla E-Learning module 'An Introduction to Children First'.

The e-learning module is available at <http://www.TUSLA.ie/children-first/children-first-e-learning-programme>

The e-learning module outlines the roles and responsibilities for all staff and volunteers in recognising, responding to and reporting child protection concerns and welfare.

All staff and volunteers should know who the DLP and deputy DLP are within the centre and how to contact them when they are not on site. Mandated persons have an individual responsibility whereas the DLP's role relates to the organisation.

Child Safeguarding Briefings are offered by IPAS staff, in addition to the e-learning module. All Accommodation Centre staff must attend a briefing with the Child Safeguarding Team.

Designated Liaison Person (DLP) Training

The DLPs are supported in this role having attended the Tusla's Children First e-learning module and TUSLA DLP e-learning module <https://www.TUSLA.ie/children-first/organisations/appointing-a-designated-liaison-person/> along with on-going interaction with TUSLA and on-going support, both on-site and by the IPAS Resident Welfare Team (RWT).

Mandated Person Training

Mandated Persons are supported in this role having attended the Tusla Children First e-learning module and Tusla Mandated Person e-learning module <https://www.TUSLA.ie/children-first/mandated-persons/mandated-person-role-and-responsibilities-e-learning-module/> along with ongoing interaction with Tusla and ongoing support, both onsite and over the phone by IPAS Resident Welfare Team (RWT).

Internal personnel procedure in IPAS

If an allegation of abuse is made against any staff member of IPAS this should be reported to the Principal Officer. It should also be reported to the Designated Liaison Person for IPAS. The DLP will determine if the allegation reaches the threshold to be reported to TUSLA. The PO, Staff Member and the DLP must cooperate on all processes with TUSLA.

The PO or any concerned person can make a report of the incident to TUSLA directly.

The PO communicate with the employee if a child abuse incident or concern is reported regarding an allegation against an IPAS staff member. The PO will advise them of any supports available to them from the Dept of Justice, Home Affairs and Migration such as the Employee Assistance Services Programme.

Chapter 7

GENERAL CHILD PROTECTION OR WELFARE MEASURES



This policy also encourages staff and residents in centres to be aware of, and to act, in accordance with the **Child Protection and Welfare Policy** in their accommodation centre.

Absence of parents/guardians from centre

If a parent or guardian of a child intends to be absent for any period, they must inform the centre manager in writing as to who will be responsible for their child in their absence. The centre manager must be satisfied to the suitability of anyone minding a child. The specific details of the absence, when and for how long, must be made known. If the parent/guardian is going to be away overnight, then the name, address, and contact number must be supplied to ensure that the centre can make contact with the parents in the event of an emergency. See Form at Appendix 5. Children cannot be left unsupervised in accommodation centres.

Contact with Children

Staff in centres encountering children should respect their personal space, safety, and privacy. In particular, they should:

- ▶ Be sensitive to the risks involved in participating in contact sports or other similar activities.
- ▶ Be observant. Get to know the children while being aware of professional boundaries.
- ▶ Use appropriate language, be kind, respectful and friendly. Encourage children to voice concerns.
- ▶ Never physically punish or be in any way verbally/emotionally abusive to a child, nor should they ever tell jokes of a sexual nature in the presence of children.
- ▶ Be sensitive to the possibility of developing favouritism or becoming over involved, or spending a great deal of time with any one child.

- ▶ Do not transport children in personal cars.
- ▶ Be encouraged to report cases of bullying to a Designated Liaison Person. This issue may need to be brought to the attention of management and IPAS to ensure an effective solution is put in place for the bullying victim.

Staff Recruitment

Statutory obligations on employers in relation to Garda vetting requirements for persons working with children and vulnerable adults are set out in the National Vetting Bureau (Children and Vulnerable Persons) Acts 2012-2016. It is compulsory for employers to obtain vetting disclosures in relation to anyone who is carrying out relevant work with children or vulnerable adults. The Department is not the direct employer of those who work in the centres under contract to the Department. Nonetheless IPAS, on behalf of the Department, acts as a conduit for Garda Vetting procedures carried out on centre staff – see our Garda Vetting policy. Moreover, it requires that companies under contract to the Department engage in the following process when recruiting staff:

- ▶ Specifically ask candidates if there is anything that would exclude them from working with adults and children. (This is in addition to the Garda Vetting process.)
- ▶ Have a suitable probation period.
- ▶ Require three references from potential employees.
- ▶ Fully check references. Follow up at least one reference verbally (as per Appendix 7).

- ▶ All staff will be formally Garda Vetted. No staff member may take up employment in a centre until a valid Vetting Disclose has been received and accepted by the employer. This is in accordance with Section 12 (1) (a) of the National Vetting Bureau Act 2012 “A relevant organisation shall not employ...any person to undertake relevant work or activities, unless the organisation receives a vetting disclosure from the Bureau in respect of that person”
- ▶ IPAS requires that all staff in accommodation centres be re-vetted at a maximum of every 3 years for the duration of their employment.

If help is needed with this procedure, please see the guidance contained in Tusla’s Child Safeguarding: A Guide for Policy, Procedure and Practice.

Recruitment of minors

Child protection procedures must pertain to them also.

People who are under 18 can work in IPAS centres as long as they pass the recruiting process/procedure for that centre. They must be always supervised by an adult. Young persons under 18 will also need permission from their parents. They must complete the Tusla Children First E-Learning Training Programme.

If an employee in one of IPASs Accommodation Centres is under the age of 18 and witnesses a concern or form of abuse to another child, it is mandatory for their parent/guardian to accompany them while they report/document what they saw to the DLP/Centre Management.

Anyone under 18 cannot be a mandated person or register on the TUSLA online portal. While IPAS Child Safeguarding Briefings are mandatory for IPAS centres, anyone under

18 must have written permission from their parent/guardian. See Permission Form in Appendix 10.

Procedures regarding allegations involving staff, service providers or visitors

As specified under the Children First Act a Child Protection or Welfare concern can be reported involving:

- (i) a member of staff of all accommodation centres contracted to Department of Justice, Home Affairs and Migration
- (ii) an IPAS /IRPP staff member
- (iii) a service provider
- (iv) a visitor

This Policy applies to all such persons. All staff in all accommodation centres and EROC’s must sign a declaration (Appendix 2) stating they have seen, understand and will adhere to the Accommodation Centre’s Policy.

In all cases involving persons in these cohorts, such concerns should be reported to the centre Designated Liaison Person (DLP). The DLP should inform centre management/contractor and the IPAS Resident Welfare Team (IPASChildSafeguarding@justice.ie) of the concern and ensure, as far as is possible, that all necessary measures are taken to ensure child protection in the centre. The Centre Manager should be informed of all allegations of abuse and should follow HR procedures pertaining to the allegation. Depending on the circumstances of the case, and following consultation with Tusla, AGS, Manager of the Resident Welfare Team etc., the manager/proprietor will not permit the visitor, service provider or the centre staff member on-site pending the outcome of any further investigation.

The parents/guardian of the child should be kept informed at all stages/processes and actions taken if there is any allegation against a staff member/service providers/visitors in relation to their child.

There are numerous Tusla Child and Family Agency contact points for reporting. All child protection concerns should be reported as soon as possible to the local Tusla Duty Social Work Team, whether this concern applies to a member of staff; a member of IPAS / IRPP staff; an external third-party visitor, a volunteer or a resident of a centre.

Members of centre staff

Any child protection allegation against a member of staff should be reported in the same manner as any other child protection concern that is brought to the attention of the DLP or Centre manager in the centre. If there is any doubt as to whether the allegation reaches the threshold for a report, the DLP should consult with the local Tusla Duty Social Work Department or the Resident Welfare Team in IPAS.

The timeframes in which Mandated Persons must make reports are laid out in Children First National Guidance 2017, Chapter 3. Mandated persons are people who have contact with children and/or families who, by virtue of their qualifications, training and experience, are in a key position to help protect children from harm. Mandated persons include key professionals working with children in the education, health, justice, youth and childcare sectors. This includes the manager of asylum seeker accommodation (direct provision) centre. If the Mandated Person feels urgent intervention is required to make the child safe, they can contact the Gardaí and alert Tusla of the concern in advance of submitting a written report, which must be submitted within three working days.

The mandated person is mandated in their own role. They are not part of the reporting procedure similar to the DLP. The reporting procedure applies to them as it does to all other staff. The Centre Manager and DLPs of the centre must register on the Tusla Portal to report any child abuse issues. The email and

associated password and PIN for the Portal profile should be known only to the Centre Manager and DLPs of the centre. Mandated Persons working in a centre who are **not** the manager should have their own profile on the Portal but they must follow the reporting procedure and where possible submit a joint report with the DLP. If the DLP is on leave, a member of the management board should be notified that a report has been made to Tusla. The Portal is available at the following link, and instructions on how to register on the Portal are also provided: <https://portal.TUSLA.ie/Account/Login?ReturnUrl=%2f>

The DLP:

1. Makes sure the organisations reporting procedure is followed
2. Makes sure concerns are reported promptly to Tusla
3. Acts as a resource and support to workers
4. Records all concerns and actions taken

Protective measures such as asking a staff member not to come on site while a concern is investigated are not a presumption of guilt. IPAS recommends that contractors appoint separate individuals to manage:

1. The implementation of this policy, including reporting to Tusla and
2. Internal HR procedures

In circumstances where an allegation is made that a member of staff has harmed a child/ children.

Any staff member who witnesses behaviour that they consider harmful towards a child should immediately report this to the centre DLP. If the DLP is not available, their Deputy or the Centre Manager should be informed. This applies to behaviour by other staff members as well as any other person on the centre premises.



Member of IPAS staff

Any child protection allegation against a member of IPAS/IRPP staff should be reported in the same manner as any other child protection concern that is brought to the attention of the DLP in the centre. If there is any doubt as to whether the allegation reaches the threshold for a report, the DLP should consult with the local Tusla Duty Social Work Department, or a Principal Officer of IPAS.

When the above is complete, the centre DLP should report the matter to the Principal Officer of IPAS who will make a judgement on whether the matter should be reported to An Garda Síochána and/or the Departmental Human Resources Unit. The Principal Officer of IPAS should consider whether the officer concerned will be allowed return to the centre pending the outcome of any consequent investigation.

As above, the IPAS staff member should be privately informed of the following:

- ▶ The fact that an allegation has been made against them;
- ▶ The nature of the allegation;

The IPAS staff member should be afforded the opportunity to respond. The Principal Officer of IPAS should note the response and pass on this information when making a report to the Tusla Social Work Team.

External Service provider

Where a concern arises in relation to an external Service Provider to an IPAS Centre. The Centre Manager must discuss immediately with the Service Provider.

- ▶ Where an allegation of Child Abuse is made against the external member of staff. The Centre Manager should take all such measures to make the centre safe including excluding the person against whom the allegation is made from access to the IPAS Centre.
- ▶ The Centre Manager should immediately report the allegation of abuse to Tusla Child and Family Agency and the Gardai. The Centre Manager should co-operate fully with any investigation/comply with any recommendation made by Tusla and the Gardai.
- ▶ The Centre Manager will share information on the allegation with the Service Provider on a strictly confidential basis; to the extent necessary for appropriate investigation by the service provider stating that it should be shared onwards no further than is necessary for that purpose.
- ▶ The Centre Manager must inform IPAS of the allegations made against the external member of staff. The report must be anonymised.

Visitor

Where a concern arises in relation to a visitor, the IPAS centre should, depending on the circumstances of the case involved, consider not permitting the visitor on-site pending the outcome of any further investigation carried out by the centre DLP, Tusla or An Garda Síochána. In all such circumstances, IPAS should be notified.

Any child protection allegation against a visitor should be reported in the same manner as any other child protection concern that is brought to the attention of the DLP in the centre. If there is any doubt as to whether the allegation reaches the threshold for a report, the DLP should consult with the local Tusla Duty Social Work Department.

Chapter 8

RECORD KEEPING IN CENTRES



All welfare concerns regarding a child will be recorded and copied immediately to IPAS. This is to enable 'tracking' of any Child Protection or Welfare concerns that may arise in relation to children and families throughout their IPAS /IRPP accommodation history.

Each accommodation centre will have an agreed recording procedure whereby all concerns are documented. IT records must be password protected and paper files must be in a secure location in a locked filing cabinet. Only specifically authorised personnel will have access to children's records.

When the Mandated Person or DLP makes a report to the Tusla Child and Family Agency the unique tracking Tusla number should be recorded and kept and reported to Tusla.

Where a centre closes down, all relevant reference to child safeguarding records must be sent to IPASChildSafeguarding@justice.ie for archiving.

All concerns relating to children will be recorded on the Tusla Portal by the Centre Manager and sent to IPAS via the "Reporting a Child Welfare Concern" Form (Appendix10) Subsequent records created relating to the concern should be linked with the completed form and may include:

- ▶ Records of conversations with residents (including children), staff, other professionals, (Social worker, Gardaí, IPAS staff etc.
- ▶ Records of follow-up phone calls
- ▶ Formal correspondence.

All child records must be kept in accordance with legislation under Freedom of Information Amendment Act 2003 (FOI), Data Protection Legislation and GDPR. Details can be found at <http://www.irishstatutebook.ie/eli/2003/act/9/enacted/en/pdf>

The Children First Act 2015 does not require you to inform the family that a report under the legislation is being made to Tusla. However, it is good practice to tell Parents and Guardians the reason(s) why any information is recorded, or referrals made in respect of their child/children unless,

- (i) to do so would place a child at further risk or
- (ii) doing so may place you at risk of harm from the family or
- (iii) the families knowledge of the report might impair Tusla's ability to carry out a risk assessment.



Chapter 9

PRACTICE DOCUMENT



STEPS TO BE FOLLOWED WHERE A CHILD PROTECTION AND WELFARE CONCERN IS IDENTIFIED

All centres are required to have the names and contact details of the Designated Liaison Person (DLP) and the Deputy DLP clearly displayed in a prominent location within the centre.

Instructions on how to create a Tusla Portal account can be found on the Tusla website also see link included in Appendix 1.

In the case of suspected trafficking, the report form at Appendix 1 should be forwarded to the Chief Superintendent of the Garda National Immigration Bureau, then to the local Duty Social Work Department and a copy emailed to IPASVOT@justice.ie

If a child is at immediate risk or the concern is very serious, and it is not possible to contact the Tusla Child and Family Agency, contact should be made with An Garda Síochána immediately. No child should ever be left in a situation that places them at risk of further harm.

Child Protection and Welfare Reporting Protocol

If a member of staff in an accommodation centre, an IPAS staff member, or an outside inspection/work unit becomes aware of a child protection or welfare concern, this must be reported to the centre DLP. The DLP making the report must inform the child's parents unless it is considered that this would place the child at further risk, place you at risk of harm from the family or the families knowledge of the report might impair TUSLA's ability to carry out a risk assessment.

Where a concern is referred to the TUSLA Duty Social Work Team, it is not the responsibility of the person who initially identified the concern or the centre DLP to investigate the concern. It is their responsibility to document and report issues of concern.

Centre Managers are now, by law, Mandated Persons, and have a separate and serious statutory duty to report any child protection concerns to Tusla. Mandated Persons must make reports 'as soon as is practicable' once a concern arises. Delay in reporting could have extremely serious consequences for a child and should be avoided.

Under the Children First Act 2015, failure to report a concern that has reached or exceeded the threshold of harm, whereby a child is subsequently left at risk or harmed, may result in a complaint to any professional body of which a Mandated Person is a member, which could result in a negative judgement from a Fitness to Practice Committee. Tusla may also inform the National Vetting Bureau of a failure to report, and this information could be disclosed in future Garda Vetting.

Failure to report child protection concerns could also be an offence under the Criminal Justice Withholding of Information on Offences against Children and Vulnerable Persons Act 2012 and may result in charges or prosecution. Under this legislation, reports should be made to Gardaí in addition to reporting to Tusla.

Retrospective Disclosures

Retrospective disclosures refers to adults making disclosures of past abuse in their childhood. Not all child protection or welfare concerns are present day matters. It can happen that a member of staff or another person in the centre is made aware by an adult of an issue of child abuse or harm that may have happened in the past. In this circumstance, the issue should be brought to the attention of the DLP, who in turn should use the Retrospective Abuse Report Form. The Retrospective Abuse Report Form can be accessed on the Tusla website, www.TUSLA.ie. The DLP should also make IPAS Resident Welfare Team aware of this incident.

Concerns raised by another organisation

All external visitors to the centre must sign the declaration at Appendix 2. In the event that the concern is identified by another organisation or professional (e.g. Welfare Official, Public Health Nurse, Voluntary Support Group), it is their responsibility to follow the child protection reporting procedure of their own organisation, and to make contact with the Tusla Social Work Team. Where the concern is brought to the attention of accommodation centre staff, the information provided should be documented by the centre DLP and sent to IPAS. IPAS will then maintain a record of this concern.

If the Mandated Person or DLP is made aware of these concerns, they **must** make a report to Tusla unless the sole basis for knowledge of the concern is as a result of knowing a Mandated Person and/or DLP in another service has made a report to Tusla about the child⁷.

Children Absent from their Accommodation Centre

Residents are obliged to inform management if their child is going to stay somewhere other than the Accommodation Centre overnight. The parent or guardian must inform management in advance (See 'IPAS House Rules and Procedures' on IPAS website www.gov.ie/ipas) Centres will have appropriate recording systems in place to manage this in accordance with the form as set out at Appendix 5.

In the event of staff becoming aware that a child is not in the accommodation centre overnight, or there are concerns regarding the child's whereabouts at any time, the parent/guardian should be asked where their child is. If concerns remain it should be reported to the Tusla Child and Family Agency and the Gardaí.

In the rare circumstances that centre managers are informed that resident children are taken into the care of the Tusla Child and Family Agency, the IPAS Resident Welfare Team should be notified.



⁷ Children First, National Guidance 2017 Chapter 3: p25

Responding to a Child who Discloses Abuse

Remember, a child may disclose abuse to you as a trusted adult at any time during your work with them. It is important that you are aware and prepared for this:

- ▶ Be as calm and natural as possible.
- ▶ Remember that you have been approached because you are trusted and possibly liked. Do not panic.
- ▶ Be aware that disclosures can be very difficult for the child.
- ▶ Remember, the child may initially be testing your reactions and may only fully open up over a period of time.
- ▶ Listen to what the child has to say. Give them the time and opportunity to tell as much as they are able and wish to. Do not ask leading questions.
- ▶ Do not pressure the child. Allow him or her to disclose at their own pace and in their own words.
- ▶ Conceal any signs of disgust, anger or disbelief.
- ▶ Accept what the child has to say – false disclosures are very rare.
- ▶ It is important to differentiate between the person who carried out the abuse and the act of abuse itself. The child quite possibly may love or strongly like the alleged abuser while also disliking what was done to them. It is important therefore to avoid expressing any judgement on, or anger towards, the alleged perpetrator while talking with the child.
- ▶ It may be necessary to reassure the child that your feelings towards him or her have not been affected in a negative way as a result of what they have disclosed.

Do not promise a child that you will keep information secret. Explain to the child or young person that you need to tell this information to the DLP, who will try to help the child and their family.



List of Appendices



Appendix 1



An Ghníomhaireacht um
Leanaí agus an Teaghlach
Child and Family Agency

Child Protection and Welfare Report Form

MANDATED PERSONS AND NON MANDATED PERSONS
(Children First Act 2015 & Children First National Guidance)

Use block letters when filling out this form.
Fields marked with an * are mandatory.

1. Tusla Area (this is where the child resides)*

2. Date of Report*

3. Details of Child

First Name*		Surname*	
Male*	☐	Female*	☐
Address*		Date of Birth*	
		Estimated Age*	
		School Name	
Eircode		School Address	

4. Details of Concerns*

Please complete the following section with as much detail about the specific child protection or welfare concern or allegation as possible. Include dates, times, incident details and names of anyone who observed any incident. Please include the parents and child's view, if known. Please attach additional sheets, if necessary

Please see 'Tusla Children First – A Guide for the Reporting of Child Protection and Welfare Concerns' for additional assistance on the steps to consider in making a report to Tusla

5. Type of Concern

Child Welfare Concern	☐		
Emotional Abuse	☐	Physical Abuse	☐
Neglect	☐	Sexual Abuse	☐

6. Details of Reporter

First Name		Surname	
Address If reporting in a professional capacity, please use your professional address		Organisation	
		Position Held	
		Mobile No.	
		Telephone No.	
Eircode		Email Address	

See link to portal: <https://portal.TUSLA.ie/Account/Login>

Appendix 2

Declaration to be completed by
(a) Any visitor to the Centre
Or
(b) Persons Providing Services to residents in the Centre.

I the undersigned, state that I have read and understood the Child Protection and Welfare Policy for _____ Accommodation Centre.

The purpose of my visit is _____

I agree to adhere to this policy that may include the sharing of Child Protection information. I declare that there is no reason why I should not work with children or be in contact with them. If in the course of my interaction in this centre, I become aware of a Child Protection and/or Welfare concern as outlined in this policy I undertake to communicate such concerns immediately to the Designated Liaison Person for this centre, that person being:

Name of DLP _____

Telephone No. _____

Signed: _____

Print Name: _____

Date: _____

For those providing services to residents in _____ Accommodation Centre:

I am aware that there is a Child Protection and Welfare Policy in place for this centre, which is based on Children First: National Guidance for the Protection and Welfare of Children. I declare that there is no reason why I should not work with children or be in contact with them.

Signed: _____

Print Name: _____

Date: _____

NOTE: This signed declaration should be retained by the Designated Liaison Person in a secure filing system, for review by a staff member of the Child Safeguarding Team, IPAS.

Appendix 3

REPORTING A CHILD WELFARE CONCERN TO IPAS

Criteria for reporting:

Designated Liaison Person (DLP)

The DLP is responsible for ensuring that reporting procedures within their organisation are followed, so that child welfare and protection concerns are referred promptly to Tusla. The DLP should record all concerns or allegations of child abuse brought to his/her attention and the actions taken in relation to a concern or allegation of child abuse.

Mandated persons

The Children First 2015 Act places a legal obligation on certain people; As a mandated person, under the legislation you are required to report any knowledge, belief or reasonable suspicion that a child has been harmed, is being harmed, or is at risk of being harmed. The Children First 2015 Act defines harm as assault, ill-treatment, neglect or sexual abuse, and covers single and multiple instances. **Mandated Persons TUSLA - Child and Family Agency**

If you are in any doubt about whether your concern reaches the legal definition of harm for making a mandated report, Tusla can provide advice to you in this regard. You can find details of who to contact to discuss your

concern on the Tusla website at www.TUSLA.ie If your concern does not reach the threshold for mandated reporting, but you feel it is a reasonable concern about the welfare or protection of a child, you should report it to Tusla.

Anyone can make a report to Tusla Child and Family Agency including staff and volunteers who are not mandated. You should always inform Tusla when you have reasonable grounds for concern that a child may have been, is being, or is at risk of being abused

or neglected. If you ignore what may be symptoms of abuse, it could result in ongoing harm to the child. It is not necessary for you to prove that abuse has occurred to report a concern to Tusla. All that is required is that you have reasonable grounds for concern.

The organisation's Child Protection and Welfare reporting procedures should be followed. If the worker/volunteer or the DLP are unsure if there are reasonable grounds for concern they can informally discuss their concern with the Tusla duty social worker.

If you feel the child is in immediate risk of harm, call An Garda Síochána (Irish Police) immediately on 999. When you make a report to Tusla of a concern about a child you should let IPAS know that a report has been made. We do not need a copy of the report submitted to Tusla, the detail contained in the report or the child's details.

Tusla will acknowledge receipt of your report and issue you with a reference number, you can include this reference number when you are notifying IPAS on the attached 'Reporting a child welfare concern to IPAS form.

IPAS needs to know

- ▶ that a report has been sent to Tusla;
- ▶ when and where the incident happened;
- ▶ the type of abuse reported;
- ▶ the date it was sent to Tusla and
- ▶ the acknowledgement reference number received from Tusla.

IPAS does not need to know

- ▶ The name of the child / children
- ▶ The family name or identification number

Please complete the table below and send it to the IPAS Residents Welfare Team
IPASChildSafeguarding@justice.ie

- ▶ Tick the box for the type of concern you have reported
- ▶ Insert the date and where the incident happened
- ▶ Insert the date the report was sent to Tusla
- ▶ Tick the box if you called An Garda Síochána (AGS)
- ▶ Fill in the details below the table

REPORTING A CHILD WELFARE CONCERN TO IPAS

Type of Concern Please tick box	Where the incident happened	Date of incident	Date report was sent to Tusla or date AGS were called
Neglect			
Emotional Abuse			
Physical Abuse			
Sexual Abuse			
Child Welfare concern			
An Garda Síochána			

Please print in capital letters:

Name of Centre: _____

Name of Designated Liaison Person: _____

Name of Mandated Person: _____

Tusla Reference No. _____

Appendix 4

Confidential

Standard letter to Parents/Guardians re: referral made to Duty Social Work Team.

Name of Parent: _____

Person No.: _____

Date: _____

Dear _____,

I refer to the concern on _____ (date) whereby an issue arose regarding your child's/children's welfare and/or protection.

Due to the serious nature of this concern, I am obliged to inform the Tusla Child and Family Agency which is the organisation responsible for child protection and welfare.

All reports relating to child protection and welfare will be shared on a strictly need-to-know basis.

Yours sincerely,

Signed (DLP) _____

Name (DLP) _____

Appendix 5

(A) Parent/Guardian leaving their Child/Children in the care of another adult resident
or

(B) If your child/children will be absent from the centre overnight.

The following form must be completed by the parent/guardian prior to leaving the centre.

Name of Child: : _____ Room No. _____

(A) If you are proposing to leave your child/children in the care of another resident in the centre, you are required to advise the centre manager in writing of the following:

1. The anticipated duration of the absence _____
2. The name and room number of the person who will be minding your child/children: _____
3. Your contact number in the event of an emergency situation: _____

NB: If the absence is overnight or extended into the evening when the child/children will be asleep, you must ensure that your child/children are with the nominated adult at all times.

Signature of parent/guardian: _____ Date: _____

Signature of nominated carer: _____ Date: _____

(B) If your child/children is/are staying away from the centre please complete this section and advise the centre manager of the following:

1. The anticipated duration of the absence _____

Parent/guardian signature: _____ Date: _____

Appendix 6

Notice to all Residents

The International Protection Accommodation Services (IPAS) operates a Child Protection and Welfare Policy for this Accommodation Centre to ensure the safety and welfare of all children living here.

The Child Protection and Welfare Policy is based on "Children First: National Guidance for the Protection and Welfare of Children 2017". This centre has a Designated Liaison Person who is the contact with outside agencies and is available to any resident, staff member or other person in the centre who has a concern about a child.

The Designated Liaison Person is responsible for ensuring that the correct reporting procedure is followed, so that safeguarding concerns for children are referred quickly to the Tusla Child and Family Agency or in an emergency, to An Garda Síochána (The Irish Police).

If you have Child Protection and/or Welfare concerns they should be reported to the Designated Liaison Person for this centre, or directly to Tusla. For more information on child protection, or how to make a report to Tusla, please see the Child Protection Policy at www.TUSLA.ie

The Designated Liaison Persons for this Accommodation Centre are:

1. DLP _____ Contact Phone Number _____

2. DEPUTY DLP _____ Contact Phone Number _____

This policy is in place to protect the children in the centre and to protect the safety of all residents.

Appendix 7

Telephone Reference Check List

Applicant's Name _____

Position Applied For _____

Is there written permission to contact the referee on file Yes ☐ No ☐

Referee _____ Position/title _____

Organisation _____ Relationship to candidate _____

Phone No. _____ Fax No. _____

Date(s) of:

☐ Attempts to reach _____ ☐ Conversation _____

☐ Referee Unable/unwilling to provide reference.

- ▶ Introduce yourself and purpose of call
- ▶ Verify the referee's current and past relationship to the candidate, and the length of time they have known the candidate.
- ▶ Verify employment information already provided by candidate (e.g. dates of employment, positions, responsibilities, reason for leaving).
- ▶ Explain the position.

Ask the specific questions:

1. This candidate may have unsupervised access to children, would you have any concerns in this regard?
2. Would you comment on **candidate's** qualifications for this position?
3. Could you describe the primary responsibilities in the position(s) **candidate** held with your organisation?
4. On what activities did **candidate** spend most of her/his time?
5. What criteria were used to evaluate **candidate's** performance?
6. Were you satisfied with the results?

7. Can you give me an example of how **candidate** handled unfavourable feedback?
8. Can you tell me about **candidate's** strengths/skills?
9. **Candidate** commented on **strengths/accomplishments/awards etc.** during his/her time at your organisation. Could you comment/describe?
10. Can you comment on where **candidate's** skills/performance could be improved?
11. Has the candidate ever demonstrated any temperament or personality traits that you believe might cause a problem in the position for which they have applied?
12. The position being applied for will require the candidate to _____
Please could you respond to some specific questions about **candidate's** ability to meet those position requirements?
13. Can you describe the circumstances surrounding **candidate** leaving your organisation?
14. Given what we have discussed so far and based on the performance of **candidate** in his/her position(s) with your organisation, would you recommend this candidate for the position for which they have applied?
15. Given the opportunity, would you re-employ this individual? Yes ☐ No ☐
If no, why not? _____
16. Are there any other details you might be able to share with me about the candidate's work related characteristics that might help us in our selection decision?

Thank the referee for her/his time and assistance

Signature: _____ Date: _____

Note: Action for Contractor

In the event that you are unable to contact the referee, you must seek another reference from the potential employee.

PLEASE COPY THIS FORM FOR EACH REFERENCE REQUEST

Appendix 8

Contact Details for Child Safeguarding Team

Address:

IPAS
P O BOX 11487,
Dublin, 2.

Email: ipasinbox@justice.ie

Resident Welfare Team -Designated Liaison Persons:

Kate Gillen, Principal Officer

Email: KaGillen@justice.ie

Phone: 01 6473270

Email: IPASChildSafeguarding@justice.ie

Appendix 9

Mandated Persons

1. Registered medical practitioner within the meaning of section 2 of the medical practitioners Act 2007.
2. Registered nurse or registered midwife within the meaning of section 2(1) of the Nurses and Midwives Act 2011.
3. Physiotherapist registered of members of that profession
4. Speech and language therapist registered of members of that profession.
5. Occupational therapist in the register of members of that profession.
6. Registered dentist within the meaning of section 2 of the Dentists Act 1985.
7. Physiotherapist who practises as such and who is eligible for registration in the register (if any) of members of that profession
8. Social care worker who practices as such and who is eligible for registration in accordance with Part 4 of the Health and Social Care Professionals Act 2005 in the register of that profession.
9. Social worker who practises as such and who is eligible for registration in accordance with Part 4 of the Health and Social Care Professionals Act 2005 in the register (if any) of that profession.
10. Emergency medical technician, paramedic and advanced paramedic registered with the Pre-Hospital Emergency Care Council under the Pre-Hospital Emergency Care Council (Establishment) order 2000 (S.I. No. of 2000).
11. Probation officer within the meaning of section 1 of the Criminal Justice (Community Service) Act 1983.
12. Teacher registered with the Teaching Council.
13. Member of An Garda Síochána.
14. Guardian *ad litem* appointed in accordance with section 26 of the Child Care Act 1991.
15. Person employed in any of the following capacities:
 - (a) Manager of domestic violence shelter;
 - (b) Manager of homeless provision or emergency accommodation facility;
 - (c) Manager of asylum seeker accommodation (direct provision) centre;
 - (d) Addiction counsellor employed by a body funded, wholly or partly, out of moneys provided by the Oireachtas;
 - (e) Psychotherapist or a person providing counselling who is registered with one of the voluntary professional bodies;

- (f) Manager of a language school or other recreational school where children reside away from home;
- (g) Member of the clergy (however described) or pastoral care worker (however described) of a church or other religious community;
- (h) Director of an institution where a child is detained by an order of a court;
- (i) Safeguarding officer, child protection officer or other person (however described) who is employed for the purpose of performing the child welfare and protection function of religious, sporting, recreational, cultural, educational and other bodies and organisations offering services to children;
- (j) Child care staff employed in a pre-school service within meaning of Part VIIA of the Child Care Act 1991.
- (k) Person responsible for the care or management of a youth work service within the meaning of section w of the Youth Work Act 2001.

16. Youth worker who-

- (a) Holds a professional qualification that is recognised by the National Qualifications Authority in youth work within the meaning of section 3 of the Youth Work Act 2001 or a related discipline, and
- (b) Is employed in a youth work service within the meaning of section 2 of the youth Work Act 2001.

17. Foster carer registered with the Agency.

18. A person carrying on a pre-school service within the meaning of Part VII a of the Child Care Act 1991.

Appendix 10

Permission Form to attend Child Safeguarding Briefing

The International Protection Accommodation Services (IPAS) Child Safeguarding Briefing is provided to support people of all backgrounds and experience in recognising concerns about children and the process involved in reporting such concerns, if they arise.

It covers topics including:

- ▶ Roles and responsibilities
- ▶ Child safeguarding practice
- ▶ The role of Mandated Persons
- ▶ The responsibilities of organisations working with children to safeguard children
- ▶ The role of Designated Liaison Persons (DLP)
- ▶ Identifying concerns
- ▶ Recognising and reporting child abuse
- ▶ Cyber safety

Please note: If an employee in one of IPAS's Accommodation Centres is under the age of 18 and witnesses a concern or form of abuse to another child, it is mandatory for their parent/guardian to accompany them while they report/document what they saw to the DLP/Centre Management.

Consent Form

I, the parent/guardian of _____ (Full name of Child) give consent for them to attend the IPAS Child Safeguarding Briefing in _____ Accommodation Centre. In the event this child is a witness to; any concern or any form of child abuse, I will accompany them while they are reporting same.

Name of parent/guardian: _____

Phone Number: _____

Signature: _____ Date: _____

NOTE: This signed declaration should be retained by the Centre Manager in a secure filing system, for review by a staff member of the Child Safeguarding Team, IPAS.

This image shows a full page of blank, lined paper. It features approximately 20 evenly spaced horizontal blue lines across its entire width. The lines are thin and consistent in color, set against a plain white background. There are no margins, text, or other markings present on the page.



